

SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER OCCURRED ON
THE ACTUAL DOCKET — ALL FACTS AND IDENTIFIERS ARE FICTIONAL

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

Leora Benton v. Blue Cedar Compliance, Inc.

No. SYN-CA4-26-CV-4101-CF-NEVER-OCCURRED

Counterfactual Order Denying Rehearing Petition denied

Entered July 1, 2026.

The panel has considered Blue Cedar Compliance, Inc.'s timely June 25 petition for panel rehearing. The petition challenges the vacatur of summary judgment but does not challenge the affirmance of the narrow exclusion of Tessa Wynn's late declaration. The panel concludes that the June 15 opinion applied the proper de novo standard, considered the admitted proof cumulatively, and identified evidence from which a reasonable jury could find pretext and but-for retaliation without relying on the excluded subject.

Panel rehearing is DENIED. The petition was also circulated in accordance with the procedures governing rehearing en banc, and no judge in active service requested a poll. Rehearing en banc is therefore DENIED. The June 15 opinion and judgment remain unchanged: the exclusion ruling is affirmed, summary judgment is vacated, and the retaliation claim is remanded for further proceedings. This order adds no new factual holding and does not alter the scope of remand.

Counterfactual Order Denying Rehearing

Mandate consequence

Under Federal Rule of Appellate Procedure 41, mandate ordinarily issues seven days after entry of an order denying a timely rehearing petition. Seven calendar days after July 1 is July 8, 2026. The clerk shall use that date unless a timely motion or later order supplies a different controlling event. The June 25 petition was accepted and remained pending until this order; the original no-petition schedule therefore does not govern the present post-judgment sequence.

The clerk shall serve this order on counsel for Benton and Blue Cedar and retain the petition with the post-judgment docket. Denial of rehearing does not itself issue mandate and does not foreclose a properly presented request concerning its timing. Unless such a request is granted, the opinion and judgment will be transmitted to the district court on July 8 so proceedings may resume consistently with the mixed disposition stated in those documents.